

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF KOMPLINOV AND OTHERS v. RUSSIA

(Applications nos. 14256/20 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

30 March 2023

This judgment is final but it may be subject to editorial revision.



In the case of Komplinov and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 9 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of

interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018; *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019; and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning different aspects of unlawful deprivation of liberty of the organisers or participants of public events; *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO); and *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 178-91, 10 April 2018, and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, related to the lack of a suspensive effect of an appeal and immediate execution of a sentence of administrative detention).

IV. REMANING COMPLAINTS

12. Some applicants further raised additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their detention and fairness of the administrative-offence proceedings. In view of the above findings, the Court considers that there is no need to deal separately with these remaining complaints.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine the other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 30 March 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	14256/20 22/01/2020	**Sergey Aleksandrovich KOMPLINOV** 1984	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 22/08/2019	4,000
2.	14309/20 22/01/2020	**Yan Yuryevich CHERNYAVSKIY** 1994	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation for fair elections to Mosgorduma Moscow 27/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 30/09/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 30/09/2019	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	27644/20 25/06/2020	**Aleksandr Vladimirovich PLATITSYN** 2001	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/10/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and detention on 27/07/2019 for the sole purpose of drawing a record of administrative offence: no evidence / assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 28/10/2019	4,000
4.	27996/20 10/06/2020	**Andrey Vyacheslavovich SKOROKHOD** 1970	Pershakova Yelena Yuryevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 18/11/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and detention between 27/07/2019 and 29/07/2019 as administrative suspect for the purpose of compiling the administrative offence record, in the absence of "exceptional circumstances", beyond the statutory period of 3 hours (the administrative offence record compiled on 29/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 18/11/2019	4,000
5.	28009/20 10/06/2020	**Dmitriy Anatolyevich MINDICH** 1976	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 26/09/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and detention between 27/07/2019 and 29/07/2019 as administrative suspect for the purpose of compiling the administrative offence record, in the absence of "exceptional	4,000

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				27/07/2019				circumstances", beyond the statutory period of 3 hours (the administrative offence record compiled on 29/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 26/09/2019	
6.	28017/20 10/06/2020	**Mikhail Olegovich DEREVYANNYKH** 2000	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 18/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 27/07/2019 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence, in the absence of any "exceptional circumstances" (administrative offence record compiled on 30/07/2019)	4,000
7.	28320/20 03/07/2020	**Modest Vladimirovich OSIPOV** 1977	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 06/12/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and detention between 27/07/2019 and 29/07/2019 as administrative suspect; no evidence/ assessment of "exceptional circumstances", detention beyond the three-hour statutory period (the administrative offence record compiled on 27/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 06/12/2019	4,000
8.	28323/20 03/07/2020	**Vladimir Olegovich GONIKHIN**	Lawyers of former Memorial Human Rights Centre	Manifestation for fair elections to Mosgorduma	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/11/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and escorting to the police station and detention on 27/07/2019 as administrative	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
		1988	Moscow	Moscow 27/07/2019				suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO (administrative offence record compiled on 01/08/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 08/11/2019	
9.	28329/20 03/07/2020	**Ibragim Ibragimovich ASHURBEKOV** 1990	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/11/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and escorting to the police station and detention on 27/07/2019 as administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 26/11/2019	4,000
10.	28332/20 03/07/2020	**Aleksey Vasilyevich CHUMAKOV** 1969	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 18/11/2019	Art. 5 (1) - unlawful deprivation of liberty – detention in excess of 3 hours on 27/07/2019 for the purpose of drawing up a record of administrative arrest: no evidence / assessment of any "exceptional circumstances" (administrative offence record compiled on 02/08/2019),	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 18/11/2019	
11.	28522/20 03/07/2020	**Sergey Ilyich SHEVKOV** 1988	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 12/12/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and escorting to the police station and detention on 27/07/2019 as administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO (administrative offence record compiled on 31/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision: Moscow City Court on 12/12/2019	4,000
12.	28568/20 09/06/2020	**Anna Nikolayevna BOYNOVA** 1993	Pershakova Yelena Yuryevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 14/10/2019	Art. 5 (1) - unlawful deprivation of liberty – arrest and detention between 27/07/2019 and 29/07/2019 (two administrative arrest records of 27/07 and 28/07/2019) as administrative suspect "for examination [of the case]": no evidence/ assessment of "exceptional circumstances" under the CAO, detention beyond the three-hour statutory period, and after the administrative offence record had been compiled on 27/07/2019, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								administrative-offence proceedings – final decision: Moscow City Court on 14/10/2019	
13.	28569/20 09/06/2020	**Anastasiya Sergeyevna POPOVICH** 1992	Pershakova Yelena Yuryevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 12/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention between 27/07/2019 and 29/07/2019 as administrative suspect "for examination [of the case]": no evidence /assessment of "exceptional circumstances" under the CAO, detention beyond the three-hour statutory period, and after the administrative offence record had been compiled on 27/07/2019, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 12/11/2019	4,000
14.	28601/20 03/07/2020	**Anton Sergeyevich MOLODIK** 1966	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/02/2020	Art. 5 (1) - unlawful deprivation of liberty – arrest and escorting to the police station and detention on 27/07/2019 as administrative suspect: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO (the administrative offence record compiled on 29/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 04/02/2020	4,000

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15.	28605/20 03/07/2020	**Vladimir Yevgenyevich GURYEV** 1969	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 22/01/2020	Art. 5 (1) - unlawful deprivation of liberty- arrest and escorting to the police station and detention on 27/07/2019 for the purpose of drawing up a record of administrative offence: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 22/01/2020	4,000
16.	28638/20 03/07/2020	**Viktor Valeryevich SALIKOV** 1976	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 08/10/2019	3,500
17.	28656/20 03/07/2020	**Vladislav Vladimirovich SHERYSHEV** 1980	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police office on 27/07/2019 for the purpose of drawing up a record of administrative offence; detention in excess of 3 hours: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in	4,000

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								administrative-offence proceeding – final decision: Moscow City Court on 30/10/2019	
18.	29085/20 18/06/2020	**Stepan Alekseyevich SKLYANKIN** 1999	Laptev Aleksey Nikolayevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention between 27/07/2019 and 29/07/2019 (two consecutive administrative arrest records of 27/07 and 28/07/2019) as administrative suspect: no evidence/ assessment of "exceptional circumstances" under the CAO, detention beyond the three-hour statutory period (the administrative offence record compiled on 29/07/2019); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 10/10/2019	4,000
19.	29517/20 13/07/2020	**Aleksandr Nikolayevich SAUKHIN** 1986	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/01/2020	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting and detention at the police station on 27/07/2019 for the sole purpose of drawing up a record of administrative offence: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 28/01/2020	4,000

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20.	29538/20 15/07/2020	**Nadezhda Petrovna GUZHEVA** 1974	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 24/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting and detention at the police station on 27/07/2019 for the sole purpose of drawing up a record of administrative offence: no evidence/ assessment that it was impracticable, on the spot, to compile the offence record and to achieve the objectives set out in the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision: Moscow City Court on 24/10/2019	4,000

[1] Plus any tax that may be chargeable to the applicants.